

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**LETTER OF PLAINTIFF IN PRO PER
(FILING VOLUME GUIDANCE)**

Hearing: June 24, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

1 SUPERIOR COURT OF THE STATE OF CALIFORNIA COUNTY OF SAN FRANCISCO, UN-
2 LIMITED CIVIL JURISDICTION

3 FRANCISCUS DYLAN ROSARIO, Plaintiff in Pro Per, vs. SUBHI ABDELHALIM; CSAA IN-
4 SURANCE EXCHANGE; CARBONE, SMITH AND KOYAMA, LLP; MICHAEL R. CHAM-
5 BERS (SBN 132394); PHILLIPS, SPALLAS AND ANGSTADT, LLP; PRIYA D. NAVARAT-
6 NASINGHAM (SBN 252686); ALBERTO REYNA (SBN 347323); and DOES 1 through 20,
7 inclusive, Defendants.

8 Related cases: Case No. CGC-25-631801 (Dept. 301, Hon. Christine Van Aken) Case No. CGC-
9 25-631802 (Dept. 302, Hon. Joseph M. Quinn)

10 To: Hon. Rochelle B. East, Presiding Judge of the San Francisco Superior Court And: Hon. Joseph
11 M. Quinn, Department 302

12 Hearing line (802): June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO ACCEPT

1. Plaintiff appears in propria persona under Code of Civil Procedure sections 367, 1014, 1010, and 425.16, subdivision (i); Business and Professions Code section 6125 (bars only representation of others); *Drozdik v. Patten* (1995) 35 Cal.App.4th 1654; and California Constitution, article I, sections 3 and 7.
2. This letter is submitted to the Court under Code of Civil Procedure sections 128, subdivision (a)(8), and 187; California Rules of Court, rule 10.603 (supervisory authority of the presiding judge); the inherent authority of the Court to manage proceedings recognized in *Stephen Slesinger, Inc. v. Walt Disney Co.* (2007) 155 Cal.App.4th 736, 758 to 759; and Evidence Code sections 451, subdivision (a), 452, 453, and 459. It is served on opposing counsel by electronic mail under Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. The paper presents no enumerated ground for rejection under California Rules of Court, rules 2.118 and 2.119.
4. This letter is filed contemporaneously with the June 24, 2026 packet under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order. It does not seek any order, sanction, or substantive relief.

LETTER

Honorable Presiding Judge East and Honorable Judge Quinn:

Plaintiff Franciscus Dylan Rosario respectfully addresses this Court as a self-represented party in two related actions on the San Francisco Superior Court's civil calendar, *Rosario v. Abdelhalim* (CGC-25-631801, Dept. 301) and *Rosario v. CSAA Insurance Exchange* (CGC-25-631802, Dept.

1 302). Plaintiff submits this letter not to advance any motion, not to seek any order in advance of the
2 noticed June 24, 2026 hearing in Department 302, and not to revisit any matter already decided.
3 Plaintiff submits it for one reason: to offer this Court a candid account of why the filings on the
4 docket have reached the volume they have reached, to assure the Court that the volume is not the
5 product of any intent to burden the Court or to harass opposing counsel, and to ask the Court for
6 direction so that Plaintiff may calibrate future filings to the Court's preferences and to the actual
7 requirements of California procedural law. Plaintiff makes this request because he believes that an
8 honest letter from a pro per party, addressed to the bench in good faith and served on opposing
9 counsel in the ordinary course, is preferable to the alternative of filing more papers in an effort to
10 anticipate every possible objection the law might require.

11 The defense in these matters is Porter Scott, a Professional Corporation, an institutional defense
12 firm of substantial size and resources, appearing on behalf of CSAA Insurance Exchange, an
13 insurer of similarly substantial corporate scale. Plaintiff makes no complaint about that. The
14 architecture of California civil litigation routinely places self-represented parties opposite well-
15 resourced defense institutions, and the courts of this State have developed long-standing tools, in-
16 cluding judicial notice under Evidence Code sections 451, 452, and 453, the demurrer-admission
17 rule of *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966 to 967, and *Blank v. Kirwan*
18 (1985) 39 Cal.3d 311, 318, and the discretion of the trial court recognized in *Holloway v. Quetel*
19 (2015) 242 Cal.App.4th 1425, 1434, to give pro per litigants neutral and accurate guidance on
20 procedural requirements appropriate under the circumstances to enable the litigant to be heard, to
21 ensure that the resource disparity does not foreclose access to justice. Plaintiff respectfully ob-
22 serves the disparity not to seek special accommodation, but to explain the procedural caution that
23 has produced the docket the Court is now reviewing. When a self-represented party stands across
24 the aisle from an institutional defense firm with the staff, software, and historical familiarity with
25 this Court that the firm enjoys, the pro per party's only reliable safeguard against the loss of an
26 argument by procedural omission is to place each legal proposition, each authority, and each statu-
27 tory text on the record in a form the Court can locate quickly. That is the practice Plaintiff has
28 followed, and that is the explanation Plaintiff offers for the volume.

1 On April 23, 2025, in Rosario v. Abdelhalim, San Francisco Superior Court Case No. CGC-21-
2 594102 (the underlying action now on review before the First District Court of Appeal, Division
3 Three, Case No. A173827), the Honorable Garrett L. Wong addressed a written deliberation-stage
4 jury question. The jury asked:

5 “In considering the question of whether the defendant was negligent, should we consider
6 the provisions of Vehicle Code Sections 22107 and 21804(A)?” (JURY-QUESTIONS,
7 p. 2, ll. 12-14; RT 11, p. 7, ll. 23-27.)

8 The Court responded with a categorical prohibition:

9 “You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor
10 will the Court instruct the Jury on those provisions.” (RT 11, p. 7, ll. 23-27.)

11 The Court justified the prohibition as follows:

12 “Further, I will point out, I don’t think I needed to point this out, but neither Vehicle
13 Code Section 22107 nor 21804 subdivision A were part of the evidence. They simply
14 are not permitted to consider that as evidence in the case, period.” (RT 11, p. 8, ll. 4-9.)

15 Plaintiff objected contemporaneously, stating, “Of course we have an objection.” (RT 11, p. 10, ll.
16 8-9.) The Court overruled, stating, “They are overruled and the Court believes that this is within
17 its discretion to issue these responses.” (RT 11, p. 13, ll. 1-2.)

18 Plaintiff is not asking either Department to evaluate the merits of the Wong ruling, which is pre-
19 served for appellate review in Case No. A173827. Plaintiff explains the verbatim record only to
20 identify the source of the rule Plaintiff has been following. As Plaintiff has understood and op-
21 erated under that instruction, any governing statute, regulation, California Code of Regulations
22 provision, or California Rule of Court that Plaintiff wishes either the Court or a jury to apply must
23 be docketed and tendered to the Court, lest the authority be treated as outside “the evidence in the
24 case” and therefore not “permitted to consider.” Plaintiff considers this Superior Court directive
25 binding on Plaintiff in his practice until a court of equal or greater authority instructs Plaintiff
26 otherwise. That is why every memorandum, request for judicial notice, declaration, and verified
27 statement in the present packets identifies each governing legal authority on the face of the paper
28 rather than relying on the doctrinal default of Evidence Code section 451, subdivision (a). Plaintiff

1 is mindful that the appellate framing of the Wong ruling, as identified in California Code of Civil
2 Procedure section 614 and Evidence Code section 451, subdivision (a), is that statutes are law that
3 the court must apply and not evidence the parties must tender. Plaintiff, however, is bound by the
4 directive he received in the courtroom from the Superior Court, and Plaintiff has no authority to
5 abandon that practice on his own initiative.

6 Plaintiff respectfully asks the Court to understand the procedural restraint built into this practice.
7 Plaintiff has not filed motions seeking relief that the Court has not authorized him to seek. He
8 has not filed papers that ask Department 301 to revisit the order entered on May 12, 2026. He
9 has not filed papers in Department 302 that ask Judge Quinn to do appellate work, to overrule
10 a sister department, or to act outside the matters properly before this courtroom at the June 24,
11 2026 line. The cohorts now on the docket are organized around two functions only. The first
12 function is appellate-record preservation under California Rules of Court, rules 8.124(b)(1)(B),
13 8.155(a)(1)(A), 8.204(a), and 8.252, and Evidence Code sections 452, subdivisions (d) and (h),
14 and 459, with no relief sought from the trial court, in conformity with *Lerner v. Los Angeles City*
15 *Bd. of Ed.* (1963) 59 Cal.2d 382, 397; *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th
16 180, 189 to 191; and *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938, which authorize a party to
17 place matters on the trial-court record for appellate review without asking the trial court to act on
18 them. The second function is the placement before Department 302 of a request for judicial notice
19 and an application of judicial estoppel under *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987,
20 and *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181, 183, addressed to the three
21 motions defense has noticed for the June 24, 2026 hearing. Each filing has a specific procedural
22 function, each has been served on opposing counsel, and each has been submitted in compliance
23 with the format and compliance rules under California Rules of Court, rules 2.100 through 2.111,
24 2.118, 2.119, 2.256, 2.257, and 3.1110, and with the Court's electronic filing and Local Rule 2.7B
25 requirements.

26 Plaintiff does not, with respect, believe that the volume of his filings imposes any improper burden
27 on opposing counsel. Defense counsel are officers of this Court, members of a substantial insti-
28 tutional firm with the resources and the staff appropriate to the matters they have undertaken, and

1 they have responded to Plaintiff's filings through ordinary procedural channels. The volume in this
2 matter has arisen because the legal posture, with anti-SLAPP motions, demurrers, motions under
3 Code of Civil Procedure section 436, replies, and a cross-case judicial estoppel question rooted in
4 the related 801 record, presents many discrete legal propositions, each of which Plaintiff has been
5 told he must place on the record if he wishes the Court to apply it. Plaintiff respectfully observes
6 that, were defense counsel correct that the volume reflects harassment rather than compliance, the
7 obvious cure would be a directive from this Court that judicial notice of California law will be taken
8 sua sponte under Evidence Code section 451, subdivision (a), without each statute being lodged
9 as a separate paper. Plaintiff would welcome that directive. Plaintiff would conform his future
10 filings to it. Plaintiff would, in a single subsequent paper, withdraw from the docket any statutory
11 citations that the Court tells him are no longer necessary to preserve, and he would consolidate his
12 outstanding requests for notice into a more compact form. He cannot, however, unilaterally adopt
13 that posture in the absence of guidance from the bench, because his prior judicial instruction is to
14 the contrary, and his obligation as a pro per litigant in this State, as he understands it, is to honor
15 that instruction until told otherwise by the Court.

16 Plaintiff offers this disclosure not to invite collateral controversy, but because the question of filing
17 volume has been raised off the record in a manner Plaintiff must, with respect, identify for the
18 Court. On May 26, 2026, lead defense counsel of record on the 802 matter sent Plaintiff an
19 unsworn email, transmitted outside any noticed motion practice, characterizing Plaintiff as having
20 "crossed the line into civil harassment" and describing Plaintiff's docketed papers as "frivolous AI-
21 created pleadings daily and utilizing the legal system improperly." No motion under Code of Civil
22 Procedure section 128.5 or section 128.7 has been noticed, no safe-harbor demand under section
23 128.7, subdivision (c), has been served, no specific filing has been identified, and no application
24 under Code of Civil Procedure section 527.6 has been filed. Plaintiff identifies the communication
25 for the Court's situational awareness only, and asks the Court to consider it, if at all, solely for
26 the limited purpose of confirming that the present letter is not gratuitous: the very characterization
27 Plaintiff respectfully asks this Court to set aside, that volume equals harassment, has already been
28 advanced informally by an officer of this Court outside the procedural channels the Legislature

1 has provided. Plaintiff stresses that he does not, by this disclosure, seek any sanction, fee award,
2 protective order, referral, or other relief against opposing counsel in this letter; nor does he ask
3 the Court to credit or to discredit the accusation. He asks only that, in giving the procedural
4 guidance requested below, the Court be aware that the volume of his filings is being characterized
5 in informal correspondence in terms inconsistent with the constitutionally protected and statutorily
6 required nature of the activity at issue, namely filing under California Rules of Court and the Code
7 of Civil Procedure, mandatory service under Code of Civil Procedure sections 1010, 1010.6, and
8 1013, and absolutely privileged communications under Civil Code section 47, subdivision (b).

9 Plaintiff's prayer is therefore narrow and specific. First, he respectfully asks the Presiding Judge
10 of the San Francisco Superior Court and the judge presiding in Department 302 to confirm, by
11 written direction or by oral statement on the record at the June 24, 2026 hearing line, whether
12 this Court takes the position that the law of the State of California, including its codes, regula-
13 tions, Rules of Court, and decisional rules, is judicially noticed by operation of Evidence Code
14 section 451, subdivision (a), without separate request, so that a party need not lodge each statute
15 or regulation as a request for judicial notice in order for the Court and the trier of fact to apply
16 it. Second, Plaintiff respectfully asks the Court to identify any classes of materials that the Court
17 does require to be tendered as papers for filing or as exhibits for lodging, so that Plaintiff may
18 conform his practice to the Court's expectations going forward, and so that he is not later told, as
19 he understood Judge Wong to have told him in the underlying action, that an argument has been
20 forfeited because the underlying legal authority was not formally placed before the Court. Third,
21 Plaintiff respectfully asks the Court to confirm that the doctrine of judicial estoppel applied across
22 related actions involving the same parties or privies, as articulated by *Aguilar v. Lerner*, supra,
23 *Jackson v. County of Los Angeles*, supra, *People ex rel. Strathmann v. Acacia Research Corp.*
24 (2012) 210 Cal.App.4th 487, 503, *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1468 to 1471, *MW*
25 *Erectors, Inc. v. Niederhauser Ornamental and Metal Works Co.* (2005) 36 Cal.4th 412, 422, and
26 *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896, may be raised by a self-represented
27 party through a noticed request for judicial notice and a memorandum of points and authorities,
28 as Plaintiff has done at filing items 01 through 11 and 03b, 04b, and 10 in this packet, without

1 further procedural prerequisite imposed on the pro per party. Fourth, Plaintiff respectfully asks
2 that the Court, if it determines that the doctrinal default of Evidence Code section 451, subdivision
3 (a), is operative in this Department, give Plaintiff prospective written or on-record relief from the
4 Wong-derived obligation to lodge each California statute, regulation, and Rule of Court as a sep-
5 arate item for filing or as an exhibit for lodging, so that Plaintiff may consolidate his outstanding
6 requests for notice into a more compact form, conserve the Court's calendar, conserve opposing
7 counsel's review time, and conserve Plaintiff's own remaining physical and neurological capacity,
8 while Plaintiff continues to comply with every governing California Rule of Court and Local Rule
9 that does require tender of specific papers.

10 Plaintiff offers, with respect, that his position is informed not only by the Wong instruction but also
11 by his recognition that this litigation now lives in two forums. The First District Court of Appeal,
12 in *Rosario v. Abdelhalim*, Case No. A173827 (presently pending or imminent), will review the
13 May 12, 2026 anti-SLAPP order entered in Department 301. That review will be conducted on a
14 record that Plaintiff has a continuing duty under California Rules of Court, rules 8.124(b)(1)(B),
15 8.155(a)(1)(A), and 8.204(a), to preserve. The trial-level proceedings before Department 302 at
16 the June 24, 2026 line will be conducted on a related but procedurally independent record. Because
17 the legal materials at issue in both forums are substantially the same, Plaintiff has been particularly
18 careful to keep the law, the authorities, and the exhibits identical across both. He has done so not
19 to multiply paper, but to ensure that any tribunal asked to consider an issue, whether at trial court
20 or appellate court, is reading from the same record. Plaintiff understands that consistency is, in this
21 State, a virtue of advocacy, not a vice, and he has endeavored to deliver it.

22 Plaintiff respectfully discloses, with appropriate dignity and without seeking accommodation, that
23 compliance with the Wong directive has imposed a substantial and continuing burden. The cu-
24 mulative task of identifying, citing, and tendering every potentially material legal authority, every
25 California statute, every California Code of Regulations provision, every California Rule of Court,
26 and every governing decisional rule that Plaintiff believes the Court or a jury might apply, has pro-
27 duced significant physical, neurological, and mental exhaustion. Plaintiff offers this disclosure not
28 as a request for special treatment, and not to suggest any inability to continue to represent himself,

1 but as honest context so that the Court understands the human cost of the practice Plaintiff has been
2 following. A clarifying directive from this Court along the lines requested below would, in addi-
3 tion to its doctrinal value, materially assist Plaintiff's ability to continue to participate effectively,
4 and within reasonable margins of health, in these proceedings.

5 Plaintiff closes by stating, plainly and without rhetoric, what he is not doing in this letter. He is
6 not asking either Judge to do anything in advance of the June 24 hearing other than receive this
7 letter and, if the Court is willing, to give Plaintiff guidance on the questions above. He is not asking
8 either Judge to enter any order. He is not characterizing opposing counsel as having engaged in any
9 misconduct before this Court, and he stipulates, for purposes of this letter, that opposing counsel
10 have litigated on the docket within the rules. He is not seeking to revisit the May 12, 2026 order
11 in Department 301 or any other prior ruling. He is not asking the Court to permit additional filings
12 beyond those already submitted or contemplated by the existing packets. Plaintiff is asking only
13 that this Court, in the exercise of the supervisory authority described in Code of Civil Procedure
14 sections 128, subdivision (a)(8), and 187, and California Rules of Court, rule 10.603, and the
15 inherent authority to manage proceedings recognized in *Stephen Slesinger, Inc. v. Walt Disney Co.*
16 (2007) 155 Cal.App.4th 736, 758 to 759, give Plaintiff direction. If the direction is that he need not
17 tender each statute by separate request because the Court will judicially notice California law as a
18 matter of course, Plaintiff will conform his practice immediately. If the direction is that he should
19 continue to tender authorities formally, he will continue and will accept any further calibration the
20 Court provides. Plaintiff makes this request in good faith and within the limits of his remaining
21 capacity.

22 Plaintiff submits this letter respectfully, as a self-represented party doing his honest best to follow
23 the instructions he has received from this Court in the cases that preceded this one, and asks the
24 Presiding Judge and the trial judge to receive it in that spirit. Plaintiff will be present and prepared
25 to address any questions the Court may have at the June 24, 2026 hearing in Department 302, and
26 he will conform his practice in both 801 and 802 to whatever direction the Court provides.

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Dated: _____, 2026

Franciscus Dylan Rosario Plaintiff in Pro Per

Proof of service by electronic mail under Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, on:

- Consent on file per seq 009 (March 6, 2026). Server: soltrinox@gmail.com. Executed at Rohnert Park, California.

Enio

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